

26STCP01239 26STCP01239

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Case Number: 26STCP01239 Hearing Date: July 15, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

MOBILITAS INSURANCE COMPANY

OF ARIZONA,

Petitioner,

vs.

AMIR ZAYTOUN,

et al.

Respondents.

Case No.:

26STCP01239

Hearing Date:

July 15, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

PETITIONER MOBILITAS

INSURANCE COMPANY OF ARIZONA'S MOTION TO STAY ARBITRATION PROCEEDINGS

Background

On April 18, 2024, Petitioner Mobilitas Insurance Company of Arizona ("Petitioner") filed a "Petition to Open Superior Court File for Purpose of Establishing Superior Court Jurisdiction Over Uninsured Motorist Arbitration Matter" against Respondents Amir Zaytoun, Carey Wood, and Arman Grigoryan ("Respondent").

Petitioner now moves to stay arbitration proceedings pending resolution of Respondent's occupational accident insurance claim. Respondent opposes, and Respondents Amir Zaytoun and Carey Wood filed a notice of joinder in the opposition. Petitioner replied.

Legal Standard

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: ... (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact." (Code of Civ. Proc., § 1281.2, subd. (c).) "If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court ... may stay arbitration pending the outcome of the court action or special proceeding." (Code of Civ. Proc., § 1281.2, subd. (d)(4).)

"Once a dispute is submitted to arbitration, the [California Arbitration Act] contemplates only limited, if any, judicial involvement." (Briggs v. Resolution Remedies, (2008) 168

Cal.App.4th 1395, 1400 (Briggs).) “[A]n arbitration has a life of its own outside the judicial system. [Citation.] The trial court may not step into a case submitted to arbitration and tell the arbitrator what to do and when to do it....” (Id. at p. 1401 [internal quotations omitted].)

Discussion

In support of the motion, Petitioner explains that “[t]his is an uninsured motorist arbitration case. At the time of the automobile accident, Respondent was driving for Lyft. Lyft has occupational accident insurance with United Fire Insurance Company/Blue Star Claims under Business & Professions Code Section 7455(a). Occupational accident insurance is the equivalent of worker’s compensation insurance for purposes of underinsured motorist arbitration. (Bus. & Prof. Code § 7455(e).) Thus, Mobilitas is entitled to reduce underinsured motorist benefits by the amount paid in occupational accident insurance benefits. Respondent has explicitly refused to file a claim with Blue Star under the belief that he is not obligated to do so. This is wrong.” (Notice of Mot., 2:3-10.) Petitioner asserts that “Claimant is required to resolve an occupational accident insurance claim before arbitration can proceed.” (Mot., 4:21-22.)

Petitioner also asserts that “[a]ny benefits received from occupational accident insurance are considered amounts payable under worker’s compensation law or disability benefits under Insurance Code Section 11580, et seq. (Bus & Prof. Code § 7455(e).)” (Mot., 4:11-13.) Insurance Code section 11580.2, subdivision (f) provides in part as follows:

“The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration... If the insured has or may have rights to benefits, other than nonoccupational disability benefits, under any workers’ compensation law, the arbitrator shall not proceed with the arbitration until the insured’s physical condition is stationary and ratable. In those cases in which the insured claims a permanent disability, the claims shall, unless good cause be shown, be adjudicated by award or settled by compromise and release before the

arbitration may proceed. Any demand or petition for arbitration shall contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers' compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately..."

In the instant motion, Petitioner states that Respondent has "no intention to comply with the explicit language of the Mobilitas Policy by his refusal to file a claim with Blue Star," and Blue Star confirmed they do "not have a claim filed by Respondent." (Mot., 4:23-5:1.) Petitioner asserts that "[t]he Court should stay the arbitration until the Respondent has filed an occupational accident insurance claim and said claim is resolved... Allowing the arbitration to go forward without the Respondent resolving an occupational accident insurance claim would violate Mobilitas' insurance policy and potentially provide the Respondent with double recovery." (Mot., 5:5-10.) Further, Petitioner contends that "[s]taying arbitration is the only way to prevent double recovery, because the Petitioner cannot assert a lien for worker's compensation benefits, and will not know the amount paid for the occupational accident insurance claim until the claim resolves." (Mot., 5:22-24.)

Respondent responds by asserting that he "has no rights under any workers' compensation law" because he is an app-based driver, making him "outside the workers' compensation system entirely." (Opp., 4:16-19.) Respondent states that "[u]nder Proposition 22, an app-based driver who meets the statutory conditions 'is an independent contractor and not an employee.'" (Opp., 4:16-18, citing Bus. & Prof. Code, § 7451.)

Additionally, Respondent cites *Castellanos v.*

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Cal.5th 588, 552, where the court upheld Proposition 22, defining app-based drivers as independent contractors. Respondent contends "Proposition 22 required network companies to purchase private occupational accident insurance for their drivers (Bus. & Prof. Code, § 7455, subd. (a)) — because those drivers have no workers' compensation coverage. An occupational accident policy is a contract of private insurance issued by a commercial carrier; it is not a 'workers' compensation law,' and rights under it do not arise 'under any workers' compensation law' within the meaning of section 11580.2, subdivision (f)." (Opp., 4:22-27.)

Respondent also asserts that “Petitioner’s reliance on Business and Professions Code section 7455, subdivision (e), is misplaced.” Business and Professions Code section 7455, subdivision (e) states that “[a]ny benefits provided to an app-based driver under subdivision (a) or (b) of this section shall be considered amounts payable under a worker’s compensation law or disability benefit for the purpose of determining amounts payable under any insurance provided under Article 2 (commencing with Section 11580) ... the Insurance Code.” Respondent contends that “[b]y its plain terms, subdivision (e) is a narrow deeming provision directed at the calculation of amounts payable — i.e., the offset an insurer may take under Insurance Code section 11580.2, subdivision (h)(1), for amounts ‘paid and the present value of all amounts payable’ under a workers’ compensation law. It says nothing about the procedural stay in subdivision (f), and it operates only on benefits actually ‘provided.’ No benefits have been provided to Respondent here. A statute directed at how to count an offset cannot be rewritten into a mandate that an insured create the offset by filing a claim he never made. The structure of subdivision (f) confirms it has no application here. The stay it contemplates is tethered to workers’ compensation adjudication: arbitration is deferred until the insured’s condition is ‘stationary and ratable,’ and permanent disability claims must be ‘adjudicated by award or settled by compromise and release’ — terms of art belonging to proceedings before the Workers’ Compensation Appeals Board.” (Opp., 5:6-22.)

Insurance Code section 11580.2 subdivision (f) requires a stay of arbitration if there are possible rights under workers’ compensation law. However, here, Respondent does not have workers’ compensation rights because he is an independent contractor. Respondent is covered by private occupational accident insurance, to which workers’ compensation does not apply. Thus, Insurance Code section 11580.2 subdivision (f) is inapplicable.

Without the language under Insurance Code section 11580.2 subdivision (f) authorizing a stay, the Court does not have jurisdiction to grant the relief Petitioner seeks. “When it has been determined that arbitration should be pursued and all judicial proceedings have been suspended until completion of the arbitration, it would be wholly incompatible with established policies of the law to permit the court thereafter to intervene in, and necessarily to interfere with, the arbitration ordered.” (Briggs, *supra*, 168 Cal.App.4th at p. 1400.) Here, Respondents Amir Zaytoun and Carey Wood sought uninsured

motorist arbitration on May 20, 2025, while Respondent did so on January 23, 2026.

The “parties agreed to consolidate all claims into a single arbitration, engaged in written discovery, and jointly selected an arbitrator. The consolidated arbitration is scheduled for July 14, 2026.” (Opp., 3:26-4:1.) The Court only has jurisdiction to interfere with arbitration pursuant to statutory authorization, and Insurance Code section 11580.2 does not confer the Court with such jurisdiction to stay a pending arbitration while there is allegedly a private insurance claim. (Briggs, supra, 168 Cal.App.4th at pp. 1400-1401.) Accordingly, the Court denies Petitioner’s motion.

Conclusion

Based on the foregoing, Petitioner’s petition is DENIED.

Petitioner is ordered to provide notice of this Order.

DATED: July 15, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court